

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

COREY DEROUNCE ROYAL-MILLION,

Petitioner

VS.

TONY JOHN ROYAL-MILLION,

Respondent

) Case Number: FDI-24-800431

) Hearing Date: July 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF PROPERTY CONTROL; MOTION TO COMPEL

**TENTATIVE RULING**

**The parties are ordered to appear in-person or via Zoom video at 9AM on 7/28/2026 in Department 404 so that the Court can make arrangements for Respondent to return the Boosted scooter to Petitioner without violating the active restraining order. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

**A. Procedural History**

- 1) The parties in this matter are Corey Royal-Million (Petitioner) and Tony Royal-Million (Respondent). The parties married on 10/22/2017. Petitioner contends the parties separated on 6/26/2023, for a marriage of 5 years and 8 months. Respondent asserts the parties separated on 1/22/2019, for a marriage of 1 year and 3 months. The parties have no minor children in common. Both parties are self-represented.
- 2) On 1/22/2019, a Criminal Protective Order was issued for Respondent's protection against Petitioner. The CPO expired on 1/22/2022.

1 3) On 7/29/2021, in related Case No. FDV-21-815745, the Court issued a 3-year Restraining Order  
2 After Hearing for Petitioner's protection against Respondent. The restraining order expired on  
3 7/28/2024.

4 4) On 11/21/2025, in related Case No. FDV-17-813401, the Court issued a 5-year Restraining Order  
5 After Hearing for Respondent's protection against Petitioner. The restraining order expires on  
6 11/21/2030.

7 5) On for hearing is Petitioner's Request for Order filed 5/21/2026. Petitioner checked the box for  
8 "Property Control" of "dji Drone" and "boosted Rev scooter." Petitioner's 5/21/2026 Request for  
9 Order also includes a motion to compel. Petitioner asks the Court to:

10 a. Order Respondent to serve further verified, code-compliant responses to Petitioner's  
11 Request for Production, Set One;

12 b. Order Respondent to produce all responsive documents in his possession, custody or  
13 control;

14 c. Order Respondent to supplement incomplete responses and identify unavailable records if  
15 claimed unavailable;

16 d. Award monetary sanctions in an amount the Court deems appropriate.

17 6) On 7/14/2026, Petitioner filed a Declaration. Petitioner states that Respondent is wrongfully  
18 withholding his Boosted electric scooter. Petitioner states, if Respondent is unable or unwilling to  
19 return the scooter because it has been sold, damaged, destroyed, or otherwise disposed of,  
20 Petitioner requests that the Court order Respondent to reimburse Petitioner for its full  
21 replacement value together with any additional damages the Court finds appropriate. Petitioner  
22 states the scooter is not community property and was gifted to him in July 2022 by David  
23 Rodriguez. Petitioner attached to his declaration a declaration signed by David Rodriguez (who  
24 states he purchased a Boosted scooter in February 2020 but gave it to Petitioner in July 2022 as a  
25 gift and did not intend for Respondent to take possession of or claim ownership of the scooter),  
26 the order confirmation, and the credit card receipt for the purchase of the scooter.

27 7) On 7/15/2026, Respondent filed a Responsive Declaration asking the Court to:

28 a. Deny Petitioner's motion to compel in its entirety, as all proper discovery issues are either  
29 legally meritless, mooted by compliance, or seek irrelevant separate property data.

- b. Issue a protective order restricting Petitioner from filing further duplicative, abusive, or non-meritorious discovery motions regarding closed, pre-separation accounts or adjudicated separate property assets.
  - c. Establish the January 22, 2019 Date of Separation
  - d. Find Spousal Support Legally Barred Under Family Code § 4325
- 8) On 7/23/2026, Petitioner filed a Responsive Declaration asking the Court to:
- a. Deny Respondent's requested relief.
  - b. Grant the relief requested in Petitioner's Request for Order.
  - c. Order Respondent to produce all outstanding financial records.
  - d. Order Respondent to pay the reasonable costs of subpoenas made necessary by his failure to comply with discovery obligations.
  - e. Order the immediate return of Petitioner's separate property, including Petitioner's Boosted scooter.
  - f. Reserve jurisdiction regarding additional sanctions, attorney's fees, and any further relief the Court deems just and proper.
- 9) On 7/24/2026, Respondent filed a Declaration. Respondent states that the order confirmation and the credit card receipt for the purchase of the scooter attached to Petitioner's 7/14/2026 declaration are fabricated. Respondent asks that the Court strike Petitioner's declaration filed 7/14/2026, rule that Petitioner is an unreliable witness, hold Petitioner in contempt of Court, and refer the matter for criminal perjury prosecution. Respondent does not refute Petitioner's statements that an individual named David Rodriguez gifted the scooter to Petitioner in July 2022.

## **B. Findings and Order**

- 1) The hearing on Petitioner's motion to compel, and the related requests, set forth in his Request for Order filed 5/21/2026 is hereby continued to 8/7/2026 at 1:30 PM in Dept. 405A to join the hearings already set on that date on other discovery related requests.
- 2) Petitioner's request for control of "dji Drone" is denied without prejudice as neither Petitioner's Request for Order nor his subsequently filed declarations provided facts or argument in support of this request.

- 1 3) Family Code section 770(a)(2) provides that separate property of a married person includes “all  
2 property acquired by the person after marriage by gift, bequest, devise, or descent.” Although  
3 Respondent refutes the veracity of the order confirmation and purchase receipt attached to  
4 Petitioner’s 7/14/2026 declaration, Respondent does not dispute Petitioner's assertion that David  
5 Rodriguez gifted the scooter to Petitioner in July 2022. The Court finds that the Boosted scooter  
6 is Petitioner’s separate property under Family Code section 770(a)(2). Because the Court's  
7 finding is based on Petitioner’s unrefuted statement that the scooter was gifted to Petitioner, the  
8 Court need not determine whether the order confirmation and purchase receipt attached to  
9 Petitioner's declaration are authentic. Accordingly, the Court declines to strike Petitioner's  
10 7/14/2026 declaration or make a finding regarding Respondent's allegations of fabrication.  
11 Respondent is ordered to return the Boosted scooter to Petitioner no later than 7/31/2026.
- 12 4) **The parties are ordered to appear at 9AM on 7/28/2026 so that the Court can make**  
13 **arrangements for Respondent to return the Boosted scooter to Petitioner without violating**  
14 **the active restraining order.**
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